SAMPLE M&A CONTRACT 2

MEMBERSHIP INTEREST PURCHASE AGREEMENT

Project Horizon — Acquisition of MedStream Analytics, LLC

This Membership Interest Purchase Agreement ("Agreement") is entered into as of June 15, 2026, by and among:

BUYER: Apex Health Holdings, Inc., a Delaware corporation ("Buyer");

SELLERS: Dr. Rajesh Anand (45% Member), Sarah Chen (35% Member), and the Anand Family Irrevocable Trust dated March 3, 2019 (20% Member) (collectively, "Sellers" and each a "Seller"); and

THE COMPANY: MedStream Analytics, LLC, a California limited liability company (the "Company").

RECITALS

WHEREAS, the Company is engaged in the business of providing cloud-based predictive analytics software and data processing services to hospitals, health systems, and physician groups throughout the United States (the "Business");

WHEREAS, Sellers collectively own 100% of the issued and outstanding membership interests of the Company (the "Interests"); and

WHEREAS, Buyer desires to purchase, and Sellers desire to sell, all of the Interests on the terms and conditions set forth herein.

NOW, THEREFORE, in consideration of the mutual covenants and agreements set forth herein, the parties agree as follows:

ARTICLE I — DEFINITIONS

1.1 "Closing" means the consummation of the transactions contemplated hereby.

1.2 "Closing Date" means July 31, 2026, or such other date as the parties may agree.

1.3 "Company Intellectual Property" means all intellectual property owned by or licensed to the Company and used in the Business.

1.4 "Fundamental Representations" means the representations set forth in Sections 3.1 (Organization), 3.2 (Authority), 3.3 (Capitalization), and 3.4 (Title to Interests).

1.5 "Knowledge of the Company" means the actual knowledge of Dr. Rajesh Anand and Sarah Chen, without any obligation of inquiry or investigation.

1.6 "Material Adverse Effect" means any event, change, occurrence, or circumstance that, individually or in the aggregate, has had or would reasonably

be expected to have a material adverse effect on the business, assets, liabilities, condition (financial or otherwise), or results of operations of the Company. For the avoidance of doubt, none of the following shall constitute or be taken into account in determining whether a Material Adverse Effect has occurred: (a) changes in general economic, financial, or market conditions; (b) changes affecting the healthcare industry generally; (c) changes in applicable law or regulations, including changes in the interpretation of HIPAA, HITECH, or any state health information privacy law; (d) the announcement or pendency of this transaction; (e) any pandemic, epidemic, or public health emergency declared by the WHO or any governmental authority; (f) any natural disaster, act of terrorism, cyberattack, or other force majeure event; (g) changes in GAAP or applicable accounting standards; (h) any failure by the Company to meet internal projections or forecasts (provided that the underlying cause of such failure may be considered); (i) any action taken by Buyer or its affiliates; and (j) any action taken by the Company at the written request or with the written consent of Buyer.

1.7 "Permitted Liens" means (a) statutory liens for Taxes not yet due and payable; (b) mechanics', carriers', workers', and similar liens arising in the ordinary course; (c) zoning, building, and other land use regulations; (d) liens arising under this Agreement; (e) liens set forth on Schedule 1.7; and (f) any other liens that do not, individually or in the aggregate, materially impair the use or value of the assets to which they relate.

1.8 "Working Capital" means current assets minus current liabilities, calculated in accordance with GAAP consistently applied with the Company's past practices, as set forth in more detail on Schedule 1.8.

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ARTICLE II — PURCHASE AND SALE

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2.1 Purchase and Sale of Interests. At Closing, each Seller shall sell, assign, transfer, and deliver to Buyer, and Buyer shall purchase and acquire from each Seller, all of such Seller's Interests, free and clear of all liens other than Permitted Liens, and Buyer shall become the sole member of the Company.

2.2 Purchase Price.

(a) Closing Payment. Buyer shall pay to Sellers an aggregate amount equal to $38,000,000, subject to adjustments as provided in Section 2.3 (the "Closing Payment"), payable by wire transfer of immediately available funds to accounts designated by Sellers. The Closing Payment shall be allocated among Sellers in proportion to their respective ownership percentages.

(b) Earnout. In addition to the Closing Payment, Sellers shall be entitled to receive earnout payments of up to $9,500,000 in the aggregate (the "Earnout Payments"), calculated and payable in accordance with Section 2.4 and Schedule 2.4.

(c) Escrow. At Closing, Buyer shall deposit $1,900,000 (the "Escrow Amount") from the Closing Payment into an escrow account with First National Trust Company (the "Escrow Agent") pursuant to the terms of the Escrow Agreement attached hereto as Exhibit A. The Escrow Amount shall be held for a period of twelve (12) months following Closing and shall be the sole and exclusive source of recovery for any indemnifiable losses arising under Section 7.1(a).

2.3 Working Capital Adjustment.

(a) At least five (5) business days prior to Closing, the Company shall deliver to Buyer an estimated Closing balance sheet and a calculation of estimated Working Capital (the "Estimated Working Capital").

(b) If Estimated Working Capital is less than the Target Working Capital set forth on Schedule 1.8, the Closing Payment shall be reduced dollar-for-dollar by the amount of such shortfall. If Estimated Working Capital exceeds Target Working Capital, the Closing Payment shall be increased dollar-for-dollar by the amount of such excess.

(c) Within ninety (90) days following Closing, Buyer shall prepare and deliver to Sellers a final Closing balance sheet and calculation of Final Working Capital. Sellers shall have thirty (30) days to review and object. Disputes shall be resolved by an independent accounting firm mutually agreed upon by Buyer and Sellers; provided, however, that if the parties cannot agree on such firm within fifteen (15) days, Buyer shall select the firm from among the Big Four accounting firms.

2.4 Earnout.

(a) Schedule 2.4 sets forth the revenue targets, EBITDA thresholds, and payment percentages applicable to the Earnout Payments.

(b) Within one hundred twenty (120) days following the end of each Earnout Period year, Buyer shall deliver to Sellers a statement of revenue and EBITDA for the applicable period, calculated in accordance with GAAP.

(c) During the Earnout Period, Buyer shall operate the Business in good faith and in the ordinary course consistent with past practice, and shall not take any action with the primary purpose of reducing revenue or EBITDA to avoid Earnout Payments.

(d) Notwithstanding Section 2.4(c), Buyer shall have sole and absolute discretion over all operational, financial, staffing, pricing, strategic, and investment decisions relating to the Business after Closing, and Buyer's exercise of such discretion shall not constitute a breach of Section 2.4(c) regardless of the effect on revenue or EBITDA.

(e) Buyer shall have the right to offset any indemnifiable losses against Earnout Payments, whether or not such losses have been finally determined.

(f) The Earnout Period means the twenty-four (24) month period beginning on the Closing Date.

2.5 Allocation. The Purchase Price shall be allocated in accordance with Section 1060 of the Internal Revenue Code as mutually agreed by the parties within sixty (60) days following Closing, or, absent agreement, as determined by Buyer in its reasonable discretion.

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ARTICLE III — REPRESENTATIONS AND WARRANTIES OF SELLERS AND THE COMPANY

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Except as set forth in the Disclosure Schedules delivered by Sellers to Buyer concurrently with the execution of this Agreement, Sellers and the Company, jointly and severally, represent and warrant to Buyer as follows:

3.1 Organization. The Company is duly organized, validly existing, and in good standing under the laws of California and is qualified to do business in each jurisdiction where the nature of its business requires such qualification, except where the failure to be so qualified would not have a Material Adverse Effect.

3.2 Authority. Each Seller and the Company has all requisite power and authority to execute, deliver, and perform this Agreement.

3.3 Capitalization. The Interests set forth in the Recitals constitute 100% of the issued and outstanding membership interests of the Company. There are no outstanding options, warrants, convertible securities, or other rights to acquire Interests.

3.4 Title to Interests. Each Seller holds good and valid title to such Seller's Interests, free and clear of all liens other than Permitted Liens and restrictions under applicable securities laws.

3.5 Financial Statements. The Company has delivered to Buyer true and complete copies of (a) the audited financial statements of the Company for the fiscal years ended December 31, 2023, and December 31, 2024, and (b) the unaudited financial statements of the Company for the fiscal year ended December 31, 2025, and the three-month period ended March 31, 2026 (collectively, the "Financial Statements"). The Financial Statements fairly present the financial condition and results of operations of the Company as of the dates and for the periods indicated, in accordance with GAAP, except that the unaudited Financial Statements are subject to normal year-end adjustments and lack footnotes.

3.6 Absence of Undisclosed Liabilities. The Company does not have any liabilities of the type required to be reflected or reserved against on a balance sheet prepared in accordance with GAAP, except (a) liabilities reflected or reserved against in the Financial Statements, (b) liabilities incurred in the ordinary course since the date of the most recent balance sheet included in the Financial Statements, and (c) liabilities set forth on Schedule 3.6.

3.7 Material Contracts. Schedule 3.7 lists all contracts to which the Company is a party involving aggregate annual payments or receipts in excess of $250,000. Each such contract is valid and binding, and neither the Company nor, to the Knowledge of the Company, any counterparty is in material breach thereof.

3.8 Intellectual Property.

(a) Schedule 3.8(a) lists all registered intellectual property owned by the Company. The Company owns or has valid licenses to use all intellectual property necessary to conduct the Business as currently conducted.

(b) To the Knowledge of the Company, the conduct of the Business does not infringe, misappropriate, or violate any intellectual property rights of any third party.

(c) To the Knowledge of the Company, no third party is infringing, misappropriating, or violating any Company Intellectual Property.

(d) The Company has implemented commercially reasonable measures to protect the confidentiality of its trade secrets.

3.9 Privacy and Data Security.

(a) To the Knowledge of the Company, the Company is in compliance in all

material respects with all applicable data privacy and data security laws, including HIPAA, HITECH, and applicable state health information privacy laws.

(b) To the Knowledge of the Company, the Company has not experienced any data breach or security incident involving protected health information ("PHI") in the twenty-four (24) months prior to the date of this Agreement.

(c) The Company maintains a written information security program. The Company has obtained SOC 2 Type I certification. Schedule 3.9(c) describes the current status of the Company's SOC 2 Type II assessment.

3.10 Healthcare Regulatory Compliance.

(a) To the Knowledge of the Company, the Company is in compliance in all material respects with all applicable healthcare laws and regulations, including the Anti-Kickback Statute (42 U.S.C. § 1320a-7b), the Stark Law (42 U.S.C. § 1395nn), the False Claims Act (31 U.S.C. §§ 3729-3733), and applicable state equivalents.

(b) The Company has not received any written notice from any governmental authority alleging any violation of any healthcare law.

(c) The Company is not a "covered entity" or "business associate" as defined under HIPAA except as set forth on Schedule 3.10(c).

3.11 Tax Matters.

(a) The Company has filed all Tax returns required to be filed and has paid all Taxes due. All such Tax returns are true, correct, and complete in all material respects.

(b) There are no pending or, to the Knowledge of the Company, threatened Tax audits or assessments.

(c) The Company has not been a member of any affiliated, consolidated, combined, or unitary group for Tax purposes.

(d) The Company is, and has been since its formation, treated as a partnership for federal income tax purposes.

3.12 Employees.

(a) Schedule 3.12(a) lists all employees of the Company, their titles, compensation, hire dates, and benefits.

(b) The Company is not a party to any collective bargaining agreement.

(c) To the Knowledge of the Company, no key employee has indicated an intention to terminate employment.

(d) Schedule 3.12(d) lists all independent contractors currently engaged by the Company.

3.13 Litigation. Except as set forth on Schedule 3.13, there is no litigation, arbitration, or governmental proceeding pending or, to the Knowledge of the Company, threatened against the Company.

3.14 Insurance. The Company maintains insurance policies as described on

Schedule 3.14. All such policies are in full force and effect, and all premiums due have been paid.

3.15 Real Property. The Company does not own any real property. Schedule 3.15 lists all real property leased by the Company.

3.16 Environmental. To the Knowledge of the Company, the Company is in compliance in all material respects with all applicable environmental laws. The Company has not received any written notice of any environmental claim.

3.17 Customers. Schedule 3.17 lists the top fifteen (15) customers by revenue for each of the two most recent fiscal years. To the Knowledge of the Company, no customer listed on Schedule 3.17 has provided written notice of its intention to terminate or materially reduce its relationship with the Company; provided, however, that this representation shall not apply to any customer whose contract with the Company is scheduled to expire within six (6) months following the Closing Date unless such customer has affirmatively declined to renew.

3.18 No Other Representations. EXCEPT FOR THE REPRESENTATIONS AND WARRANTIES EXPRESSLY SET FORTH IN THIS ARTICLE III (AS QUALIFIED BY THE DISCLOSURE SCHEDULES), NEITHER THE COMPANY NOR ANY SELLER MAKES ANY REPRESENTATION OR WARRANTY, EXPRESS OR IMPLIED, AT LAW OR IN EQUITY, WITH RESPECT TO THE COMPANY, THE INTERESTS, THE BUSINESS, OR ANY OTHER MATTER, AND ALL OTHER REPRESENTATIONS AND WARRANTIES ARE HEREBY EXPRESSLY DISCLAIMED. Without limiting the foregoing, neither the Company nor any Seller makes any representation or warranty regarding any financial projections, forecasts, estimates, or budgets delivered to or made available to Buyer.

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ARTICLE IV — REPRESENTATIONS AND WARRANTIES OF BUYER

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4.1 Organization. Buyer is duly organized, validly existing, and in good standing under the laws of Delaware.

4.2 Authority. Buyer has all requisite corporate power and authority to execute, deliver, and perform this Agreement.

4.3 Financing. Buyer has, and at Closing will have, sufficient cash, available lines of credit, or other sources of immediately available funds to pay the Closing Payment and the Escrow Amount and to perform all of Buyer's obligations under this Agreement.

4.4 No Brokers. Buyer has not incurred any liability for brokerage or finders' fees in connection with this transaction.

4.5 Independent Investigation. Buyer acknowledges that (a) Buyer has conducted its own independent investigation and analysis of the Company and the Business, (b) in making its decision to enter into this Agreement, Buyer has relied solely on its own investigation and the representations and warranties expressly set forth in Article III (as qualified by the Disclosure Schedules), (c) neither the Company nor any Seller nor any of their respective representatives has made any representation or warranty not expressly set forth in Article III, and (d) Buyer is not relying on any projections, forecasts, or forward-looking statements.

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ARTICLE V — COVENANTS

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5.1 Conduct of Business. Between signing and Closing, the Company shall operate in the ordinary course of business consistent with past practice and shall not, without Buyer's prior written consent (not to be unreasonably withheld):

(a) amend its organizational documents;
(b) issue any additional membership interests or securities;
(c) declare or pay any distributions;
(d) incur any indebtedness in excess of $100,000;
(e) enter into, modify, or terminate any contract involving annual payments or receipts in excess of $250,000;
(f) hire or terminate any employee with annual compensation in excess of $150,000;
(g) increase compensation of any employee by more than 5%;
(h) settle any litigation for more than $50,000;
(i) make capital expenditures in excess of $200,000 individually or $500,000 in the aggregate;
(j) change any accounting method or practice;
(k) take any action that would cause a Material Adverse Effect;
(l) grant any license of Company Intellectual Property outside the ordinary course; or
(m) agree or commit to do any of the foregoing.

5.2 Access. The Company shall provide Buyer and its representatives with reasonable access to the Company's properties, books, records, contracts, employees, and customers upon reasonable notice during normal business hours, subject to applicable law and the Company's confidentiality obligations to third parties.

5.3 Confidentiality. The Confidentiality Agreement between Buyer and the Company dated January 10, 2026 (the "Confidentiality Agreement") shall remain in full force and effect and is hereby incorporated by reference.

5.4 Non-Competition and Non-Solicitation.

(a) For a period of four (4) years following Closing, each Seller shall not, directly or indirectly, engage in, own, manage, operate, control, invest in, or participate in any business that competes with the Business as conducted at Closing anywhere in the United States.

(b) For a period of three (3) years following Closing, each Seller shall not, directly or indirectly, solicit, recruit, or hire any employee of the Company or induce any employee to leave the Company.

(c) For a period of three (3) years following Closing, each Seller shall not, directly or indirectly, solicit or divert any customer or prospective customer of the Company.

(d) Notwithstanding the foregoing, Dr. Anand shall be permitted to provide consulting services to hospitals and health systems in the field of clinical operations, provided that such services do not involve the development, sale, or licensing of predictive analytics software.

5.5 Regulatory Filings. The parties shall cooperate in making all filings required under applicable antitrust or healthcare regulatory laws. Buyer shall use commercially reasonable efforts to obtain all required regulatory approvals. Buyer shall not be required to divest any assets, agree to any operational restrictions, or take any action that would be materially burdensome to Buyer or

its affiliates in order to obtain such approvals.

5.6 Employee Matters. Buyer intends to continue the employment of substantially all employees of the Company following Closing, but nothing in this Agreement shall be construed as creating any obligation of Buyer to employ any individual for any specific period. Buyer shall provide employee benefits that are substantially comparable in the aggregate to those provided by the Company immediately prior to Closing for a period of not less than twelve (12) months following Closing.

5.7 D&O Indemnification. Buyer shall cause the Company to honor all existing indemnification obligations to current and former directors, officers, and managers of the Company for a period of six (6) years following Closing. Buyer shall cause the Company to maintain directors' and officers' liability insurance coverage for Pre-Closing acts for a period of six (6) years following Closing on terms no less favorable than the Company's existing coverage, or, at Buyer's option, Buyer may purchase a "tail" policy providing equivalent coverage.

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ARTICLE VI — CONDITIONS TO CLOSING

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6.1 Conditions to Buyer's Obligations. Buyer's obligation to consummate the transactions is subject to satisfaction or waiver of the following:

(a) The representations and warranties of Sellers and the Company shall be true and correct in all respects (without giving effect to any materiality, Material Adverse Effect, or similar qualifiers contained therein) as of the Closing Date, except where the failure to be true and correct would not, individually or in the aggregate, reasonably be expected to result in losses exceeding $500,000;

(b) Sellers and the Company shall have performed all covenants required to be performed prior to Closing in all material respects;

(c) No Material Adverse Effect shall have occurred since the date of this Agreement;

(d) All consents and approvals required under the contracts listed on Schedule 6.1(d) shall have been obtained;

(e) Buyer shall have received a certificate from each Seller certifying the accuracy of such Seller's representations and warranties;

(f) Dr. Anand shall have executed an employment agreement with the Company on terms mutually acceptable to Dr. Anand and Buyer;

(g) The Escrow Agreement shall have been executed and the Escrow Amount shall have been deposited with the Escrow Agent;

(h) All governmental filings and regulatory approvals required in connection with the transaction shall have been obtained or made;

(i) Sellers shall have delivered payoff letters and lien releases for all outstanding indebtedness of the Company;

(j) Buyer shall have completed its due diligence investigation to its satisfaction in its sole discretion.

6.2 Conditions to Sellers' Obligations. Sellers' obligation to consummate the transactions is subject to satisfaction or waiver of the following:

(a) The representations and warranties of Buyer shall be true and correct in all material respects as of the Closing Date;

(b) Buyer shall have performed all covenants required to be performed prior to Closing in all material respects;

(c) Buyer shall have delivered the Closing Payment and the Escrow Amount.

ARTICLE VII — INDEMNIFICATION

7.1 By Sellers. Sellers shall, jointly and severally, indemnify, defend, and hold harmless Buyer and its affiliates against any and all losses arising from or relating to:

(a) any breach or inaccuracy of any representation or warranty of Sellers or the Company set forth in Article III;

(b) any breach of any covenant or agreement of Sellers or the Company;

(c) any Pre-Closing Taxes of the Company;

(d) any liabilities arising from any litigation pending or threatened as of the Closing Date;

(e) any liabilities arising from any actual or alleged violation of HIPAA, HITECH, or any other healthcare privacy or security law occurring prior to Closing; and

(f) any liabilities arising from the matters set forth on Schedule 7.1(f).

7.2 By Buyer. Buyer shall indemnify, defend, and hold harmless Sellers against any and all losses arising from or relating to:

(a) any breach or inaccuracy of any representation or warranty of Buyer;

(b) any breach of any covenant or agreement of Buyer; and

(c) any liabilities arising from the operation of the Company after Closing.

7.3 Limitations.

(a) Basket. Sellers shall not be liable under Section 7.1(a) until aggregate losses exceed $380,000 (the "Deductible"), at which point Sellers shall be liable only for losses in excess of the Deductible.

(b) Cap. Sellers' aggregate liability under Section 7.1(a) shall not exceed $3,800,000 (10% of the Closing Payment).

(c) Escrow as Sole Source. Buyer's sole and exclusive source of recovery for losses under Section 7.1(a) shall be the Escrow Amount. In no event shall Buyer have recourse against any Seller personally or against any assets of any Seller for claims under Section 7.1(a).

(d) The limitations in Sections 7.3(a), (b), and (c) shall not apply to claims arising from breaches of Fundamental Representations or fraud.

(e) For purposes of Section 7.3(d), "fraud" means actual and intentional common law fraud with respect to the making of a representation or warranty in Article III, and shall not include constructive fraud, negligent misrepresentation, or any claim based on recklessness.

(f) The aggregate liability of Sellers for all claims under this Article VII, including Fundamental Representations, shall not exceed the Purchase Price actually received by Sellers.

7.4 Survival.

(a) The representations and warranties of Sellers and the Company shall survive Closing for a period of fifteen (15) months.

(b) The Fundamental Representations shall survive Closing for a period of twenty-four (24) months.

(c) The representations set forth in Sections 3.11 (Tax), 3.9 (Privacy and Data Security), and 3.10 (Healthcare Regulatory Compliance) shall survive until sixty (60) days following the expiration of the applicable statute of limitations.

(d) The representations and warranties of Buyer shall survive Closing indefinitely.

7.5 Exclusive Remedy. Except for claims of fraud (as defined in Section 7.3(e)) and equitable relief, the indemnification provisions of this Article VII shall constitute the sole and exclusive remedy of the parties for any claims arising out of or relating to this Agreement or the transactions contemplated hereby, whether based on contract, tort, strict liability, or otherwise.

7.6 No Duplication. In no event shall any indemnified party be entitled to recover the same loss under more than one provision of this Article VII or to recover any loss to the extent such indemnified party has been made whole by insurance proceeds, Tax benefits, or payments from third parties.

7.7 Duty to Mitigate. Each indemnified party shall take commercially reasonable steps to mitigate any loss for which such party seeks indemnification.

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ARTICLE VIII — TERMINATION

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8.1 Termination. This Agreement may be terminated:

(a) by mutual written consent of Buyer and Sellers;

(b) by either party if Closing has not occurred by September 30, 2026 (the "Outside Date"), provided that the right to terminate under this Section 8.1(b) shall not be available to any party whose breach of this Agreement has been the principal cause of the failure to close by the Outside Date;

(c) by Buyer if there has been a material breach by Sellers or the Company of any representation, warranty, or covenant that would cause the conditions in Section 6.1 not to be satisfied, and such breach has not been cured within

thirty (30) days following written notice thereof;

(d) by Sellers if there has been a material breach by Buyer of any representation, warranty, or covenant that would cause the conditions in Section 6.2 not to be satisfied, and such breach has not been cured within thirty (30) days following written notice thereof;

(e) by either party if any governmental authority shall have issued a final, non-appealable order prohibiting the transaction.

8.2 Effect of Termination. Upon termination, this Agreement shall be of no further force and effect, except that (a) Sections 5.3, 8.2, and Article IX shall survive termination, and (b) termination shall not relieve any party of liability for any willful and material breach of this Agreement occurring prior to termination.

ARTICLE IX — MISCELLANEOUS

9.1 Governing Law. This Agreement shall be governed by and construed in accordance with the laws of the State of California, without regard to its conflict of laws principles.

9.2 Dispute Resolution. Any dispute arising out of or relating to this Agreement shall be submitted to binding arbitration in San Francisco, California, administered by JAMS under its Comprehensive Arbitration Rules, before a panel of three (3) arbitrators, each of whom shall have at least ten (10) years of experience in M&A transactions or healthcare law. The arbitrators shall have authority to grant injunctive and other equitable relief. The decision of the arbitrators shall be final and binding and enforceable in any court of competent jurisdiction. The prevailing party shall be entitled to recover its reasonable attorneys' fees and costs.

9.3 Entire Agreement. This Agreement, together with the Exhibits, Schedules, Disclosure Schedules, Confidentiality Agreement, and ancillary agreements referred to herein, constitutes the entire agreement of the parties with respect to the subject matter hereof and supersedes all prior agreements, understandings, negotiations, and discussions.

9.4 Amendment. This Agreement may be amended only by a written instrument signed by Buyer and each Seller.

9.5 Waiver. No waiver of any provision shall be effective unless in writing signed by the waiving party. No failure to exercise any right shall constitute a waiver thereof.

9.6 Assignment. Neither this Agreement nor any rights hereunder may be assigned by any party without the prior written consent of the other parties, except that Buyer may assign its rights (but not its obligations) to any wholly-owned subsidiary of Buyer without consent, provided that Buyer shall remain fully liable for all obligations hereunder.

9.7 Notices. All notices shall be in writing and delivered by hand, overnight courier, or email (with confirmation of receipt) to the addresses set forth on Schedule 9.7.

9.8 Severability. If any provision is held to be invalid or unenforceable, the

remaining provisions shall continue in full force and effect.

9.9 Counterparts. This Agreement may be executed in counterparts, each of which shall be deemed an original.

9.10 Expenses. Each party shall bear its own expenses in connection with this Agreement, except that Buyer shall pay all transfer taxes, recording fees, and similar charges arising from the transaction.

9.11 Further Assurances. Each party shall execute such additional documents and take such additional actions as may be reasonably necessary to carry out the transactions contemplated hereby.

9.12 Third-Party Beneficiaries. Except as set forth in Section 5.7, nothing in this Agreement is intended to confer any rights on any person other than the parties hereto.

9.13 Specific Performance. The parties acknowledge that irreparable damage would occur if any provision of this Agreement were not performed in accordance with its terms, and the parties shall be entitled to seek specific performance and injunctive relief without the necessity of proving actual damages or posting any bond.

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IN WITNESS WHEREOF, the parties have executed this Agreement as of the date first written above.

BUYER:
Apex Health Holdings, Inc.

By: _____
Name: Michael J. Thornton
Title: Chief Executive Officer

SELLERS:

_____
Dr. Rajesh Anand, individually

_____
Sarah Chen, individually

ANAND FAMILY IRREVOCABLE TRUST
DATED MARCH 3, 2019

By: _____
Name: Dr. Rajesh Anand
Title: Trustee

THE COMPANY:
MedStream Analytics, LLC

By: _____
Name: Dr. Rajesh Anand
Title: Managing Member

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SCHEDULES AND EXHIBITS (Referenced but not attached)

Schedule 1.7 — Permitted Liens
Schedule 1.8 — Working Capital Target and Calculation
Schedule 2.4 — Earnout Targets and Payment Formula
Schedule 3.6 — Undisclosed Liabilities
Schedule 3.7 — Material Contracts
Schedule 3.8(a) — Registered Intellectual Property
Schedule 3.9(c) — SOC 2 Type II Status
Schedule 3.10(c) — HIPAA/Business Associate Status
Schedule 3.12(a) — Employees
Schedule 3.12(d) — Independent Contractors
Schedule 3.13 — Litigation
Schedule 3.14 — Insurance Policies
Schedule 3.15 — Leased Real Property
Schedule 3.17 — Top Customers
Schedule 6.1(d) — Required Consents
Schedule 7.1(f) — Specific Indemnifiable Matters
Schedule 9.7 — Notice Addresses

Exhibit A — Escrow Agreement (not attached)

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